



CHAPTER 35.

An Act to make further provision as respects the superannuation benefits of members of His Majesty's foreign service, and to make such amendments of enactments as are consequential on the establishment and reorganization of that service.

[5th August 1943.]

WHEREAS His Majesty has been pleased, by an Order in Council entitled the Foreign Service Order, 1943, to provide that His Foreign Office and diplomatic service, His commercial diplomatic service and His consular service shall be amalgamated and form one service to be called "His Majesty's foreign service":

And whereas it is expedient to make further provision as respects the superannuation benefits of members of His Majesty's foreign service, and to make such amendments of enactments as are consequential on the establishment and reorganization of that service:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

SUPERANNUATION.

- 1.—(1) For the purposes of the following enactments namely—
- (a) the Diplomatic Salaries &c. Act, 1869 (which regulates the superannuation benefits of persons in the diplomatic service who elected to remain subject thereto under section two of the next-mentioned Act); and
 - (b) the Superannuation (Diplomatic Service) Act, 1929 (which regulates the superannuation benefits of other persons in the diplomatic service),
- Amendment of superannuation enactments relating to diplomatic service.
32 & 33 Vict. c. 43.
19 & 20 Geo. 5. c. 11.

PART I.
—cont.

members of His Majesty's foreign service performing duties certified by the Secretary of State to correspond to those formerly performed by persons in the diplomatic service shall be deemed to be persons in the diplomatic service.

(2) In subsection (2) of section three of the Superannuation (Diplomatic Service) Act, 1929 (which defines the expression "minister" to include an agent and consul general), the words "agent and" are hereby repealed.

(3) This section shall be deemed to have had effect as from the date of the Foreign Service Order, 1943.

Super-
annuation
benefits on
termination of
service before
retiring age.

2.—(1) If after the commencement of this Act—

- (a) the employment in His Majesty's foreign service of a member thereof of a grade not lower than that of second secretary is terminated before the retiring age; and
- (b) the Secretary of State certifies that the termination of his employment is desirable in the public interest, having regard to his qualifications and the conditions existing in the service;

22 Vict. c. 26.

then, a superannuation allowance and an additional allowance of the amount hereinafter provided may be granted to him notwithstanding the provisions of section ten of the Superannuation Act, 1859:

Provided that nothing in this section shall alter so much of section two of the Superannuation Act, 1859, as requires a service of ten years before an allowance can be granted.

(2) The amount of any such allowance shall be such amount as could have been granted to the member in question by way of that allowance under the Superannuation Acts apart from the said section ten, together with such additional amount, if any, by way of special increase as may appear to the Treasury on the recommendation of the Secretary of State to be reasonable having regard to all the circumstances, subject to the following provisions, that is to say—

- (a) the special increase added either to the superannuation allowance or to the additional allowance shall not be such as to bring the amount of that allowance up to more than the maximum that could have been granted to the officer by way of such allowance after any number of years of service;
- (b) the special increase added to the superannuation allowance shall not exceed one hundred pounds per annum, except that, if the amount of that allowance apart from the special increase would be less than two hundred pounds per annum, such greater special increase may be granted as

may be required to bring the amount of that allowance up to three hundred pounds per annum ;

PART I.
—cont.

- (c) the special increase added to the additional allowance shall not exceed three hundred pounds, except that, if the amount of that allowance apart from the special increase would be less than six hundred pounds, such greater special increase may be granted as may be required to bring the amount of that allowance up to nine hundred pounds.

3.—(1) Where, whether before or after the commencement of this Act, a member of His Majesty's foreign service—

Recall from
abroad during
war period to
less remunera-
tive office.

- (a) has been recalled at any time during the war period from an office abroad (hereafter referred to as "his old office") ; and
- (b) after his recall has served for any time during the war period in an office under the Crown (hereafter referred to as "his temporary office") the salary of which is paid out of moneys provided by Parliament, but is less than the salary of his old office for that time ;

then, if the Secretary of State certifies that he was recalled by reason of war circumstances, the amount of any benefit granted to him, or to any other person by reference to his service, under the Superannuation Acts may be calculated as if the salary of his temporary office had been equal to the salary of his old office for that time.

(2) The foregoing subsection shall apply to a member of His Majesty's foreign service who has been recalled as therein mentioned, whether at the time of his recall he was a member of that service or a member of His Majesty's Foreign Office and diplomatic service, commercial diplomatic service or consular service.

(3) Where a person as to whom subsection (1) of this section has effect remains for any time after the expiration of the war period in the same office as he was holding at the expiration thereof, that time shall be treated for the purposes of that subsection as if it had been a part of the war period.

(4) For the purposes of this section, the expression " salary " includes emoluments, and the salary of his old office, in relation to any person and for any time, shall be taken to be the salary on which a superannuation allowance granted to him would, as regards that time, have fallen to be calculated if he had served for that time in his old office.

4.—(1) For the purposes of subsection (1) of section seven of the Superannuation Act, 1935 (which reduced the retiring age for persons spending their whole service in His Majesty's consular service in China), a member of His Majesty's foreign

Retiring age
for former
members of
China consular
service.

PART I.
—cont.

service who was a member of the said consular service (hereafter referred to as "the China service") at the time when it ceased to be a separate branch of His Majesty's consular service shall be treated as if he had remained a member thereof during the period of any such service as is hereinafter mentioned, that is to say—

(a) any service spent by him after that time in His Majesty's consular service or foreign service at any place (whether in or outside China)—

(i) at which immediately before that time persons appointed to the China service were required to serve ; or

(ii) which is certified by the Secretary of State to be a place at which persons so appointed would have been required to serve if the China service had not ceased to be a separate branch as aforesaid ; and

(b) (in a case where the Secretary of State certifies that he has been recalled by reason of war circumstances from service at any such place as aforesaid)—

(i) any service spent by him during the war period at any place in any office under the Crown the salary of which is paid out of moneys provided by Parliament ; and

(ii) any service spent by him after the expiration of the war period in any such office as aforesaid which he was holding at the expiration of that period ;

and the said subsection shall continue to apply, and be deemed always to have continued to apply, to him accordingly.

(2) The foregoing provisions of this section shall have effect in lieu of so much of subsection (2) of the said section seven as relates to persons being members of the China service at the time when it ceased to be a separate branch as aforesaid.

Interpretation,
construction
and citation
of Part I.

5.—(1) In this Part of this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say—

"the retiring age" has the meaning assigned to it by section seventeen of the Superannuation Act, 1935 ;

"Superannuation Acts" means the Superannuation Acts, 1834 to 1935, and the Superannuation (Diplomatic Service) Act, 1929 ;

"war circumstances" means circumstances directly or indirectly attributable to any war in which His Majesty may have been engaged at any time on or after the third day of September, nineteen hundred and thirty-nine ;

"war period", in relation to any provision of this Act, means the period beginning with the third day of September, nineteen hundred and thirty-nine and ending with such date as His Majesty may by Order in Council declare to be the date with which the war period is to be deemed to have ended for the purpose of that provision.

PART I.
—cont.

(2) This Part of this Act shall be construed as one with the Superannuation Acts and may be cited together with those Acts as the Superannuation Acts, 1834 to 1943.

PART II.

MODIFICATION OF ENACTMENTS CONSEQUENTIAL ON ESTABLISHMENT OR REORGANIZATION OF HIS MAJESTY'S FOREIGN SERVICE.

6.—(1) The amendments specified in the second column of the Schedule to this Act, being amendments consequential on the establishment of His Majesty's foreign service, shall be made in the enactments respectively set out in the first column of that Schedule.

This subsection shall be deemed to have had effect as from the date of the Foreign Service Order, 1943.

(2) His Majesty, on the recommendation of the Secretary of State, may by Order in Council make such other amendments of any enactment as appear to Him to be consequential on the establishment or reorganization of His foreign service, including in particular such amendments of any reference to an office, rank or grade as appear to Him to be consequential on the abolition or alteration of the description thereof or on the creation of any new office, rank or grade corresponding thereto:

Provided that the Secretary of State shall not recommend His Majesty to make an Order in Council under this subsection unless a draft thereof has been laid before Parliament and approved by resolution of each House of Parliament.

PART III.

GENERAL.

7.—(1) This Act may be cited as the Foreign Service Act, 1943.

Short title
and references
to enactments.

(2) References in this Act to any enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by or under any subsequent enactment, including an enactment contained in this Act.

SCHEDULE.

Section 6.

ENACTMENTS MODIFIED.

	Enactment.	Amendment.
54 & 55 Vict. c. 36.	The Consular Salaries and Fees Act, 1891.	Section one shall be repealed.
4 & 5 Geo. 5. c. 17.	The British Nationality and Status of Aliens Act, 1914.	In section nineteen, paragraph (c) of subsection (1) shall have effect as if the words "at a consulate of His Majesty" were substituted for the words "by officers in the diplomatic or consular service of His Majesty".
10 & 11 Geo. 5. c. 67.	The Government of Ireland Act, 1920.	In the Sixth Schedule, item (iii) of sub-paragraph (b) of paragraph III shall have effect :— (a) as respects the financial year current at the commencement of this Act, as if the words "His Majesty's foreign," were substituted for the word "The"; and (b) as respects any subsequent financial year, as if the words "His Majesty's foreign service" were substituted for the words "The Foreign Office and diplomatic and consular services".
23 & 24 Geo. 5. c. 4.	The Evidence (Foreign, Dominion and Colonial Documents) Act, 1933.	Section two shall have effect as if the words "at a consulate of His Majesty within the meaning of that Act" were substituted for the words "by an officer in the diplomatic or consular service of His Majesty."

Printed by NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

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(F. 1649)